

# Module 4: Enlightenment and Political Liberalism (1660–1790)

*Political & Economic Thought — Master Notes · by Jakob V. Stangel*

**Readings:** Jeremy Waldron, 'Locke', in Boucher & Kelly (eds), *Political Thinkers* (2003), ch. 11, pp. 181–97 · J.S. McClelland, *A History of Western Political Thought* (1996), ch. 16, pp. 315–338 (Montesquieu) · Mary Wollstonecraft, *A Vindication of the Rights of Woman* (1792) — the Dedication "To M. Talleyrand-Périgord" + the Introduction · (optional) McClelland, ch. 13, pp. 250–274 (Rousseau).

**Lecturer's steer (Joachim):** focus on **Locke, Montesquieu, and Wollstonecraft**; the Rousseau piece is **optional**. For Wollstonecraft, read **only** the Dedication and the Introduction (not the whole book). This module follows that emphasis — Locke/Montesquieu/Wollstonecraft get full treatment; Rousseau is a lighter, clearly-marked **optional** section.

**Theme of the module.** The **Enlightenment** turns **reason** against inherited **authority** — and applies it to politics as the question of **liberty**: *after Hobbes, how do you secure just and fair rule without sliding into either anarchy or absolutism?* The four thinkers give four moves in one argument — **redefine the social contract so that power itself is bound**: **Locke** (the *people* are sovereign and may depose a ruler who breaks trust) → **Montesquieu** (divide and balance power — the separation of powers) → **Rousseau** (the *general will* makes the people both sovereign and subject) → **Wollstonecraft** (if the standard is Reason, then "*the people*" must include women).

★ **The heart of the module — one question, four answers:** the Enlightenment's political question is *how to constrain power with reason and law*.

- **Locke:** government rests on **consent** and holds its power **in trust** to protect natural rights (life, liberty, property); break the trust and the people may **resist/replace** it. The **people** — not the king — are sovereign.
- **Montesquieu:** liberty is "**tranquillity without fear**," secured not by one contract but by **institutional design** — **separate the powers** (legislative/executive/judicial) and **balance** the estates so no power can act despotically.
- **Rousseau (optional):** "*man is born free, yet everywhere he is in chains*" — a legitimate contract makes each person obey only the **general will** (their own real will as a citizen), so they stay free while being ruled.
- **Wollstonecraft:** the Enlightenment's own premise — **rights follow from reason** — logically **includes women**; deny them **education** and you make them "alluring mistresses," not rational wives, mothers, and citizens. Gender hierarchy is **socially constructed, not natural**.

**The red thread.** For every thinker ask the deck's two questions: (1) *what is government for, and how is power kept from becoming tyranny?* and (2) *who counts as "the people"?* The arc runs from **constraining** power (Locke, Montesquieu) to **whose** consent and reason count (Rousseau's "who is the people?", Wollstonecraft's answer: women too).

# Lecture frame (from the deck) — the Age of Enlightenment & the question of liberty

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(The deck is the skeleton; the readings below add the flesh. Deck points marked as such.)

## | The Age of Enlightenment — reason against authority

**Core:** the Enlightenment (roughly 1660–1790) makes **knowledge and reason** the tools to **question authority** — political, religious, and traditional.

- **Two "New Worlds"** drove it: the **geographic** discoveries (Columbus, da Gama, Magellan → colonies + world trade) and the **scientific** one (Copernicus, Kepler, Brahe, Galileo, **Newton's *Principia* 1687**) — the real world is knowable by the **scientific method**.
- **Two method poles (deck):** **Francis Bacon** (1561–1626) — **empiricism**: knowledge from **observation, induction, experiment**; **René Descartes** (1596–1650) — **rationalism**: **reason, scepticism, deduction** from "self-evident principles." (*Locke and Montesquieu sit on the empiricist side; the Encyclopédie (Diderot) embodies the project.*)
- **God is "detached from reality"** and challenged by science — but note (deck): the Enlighteners were **"no democrats; few atheists."** Reason questioned authority *without* (yet) demanding democracy or rejecting God.

## | The question of liberty — after Machiavelli and Hobbes

**Core:** the political problem the Enlightenment inherits is set by **Machiavelli** (the *stato* survives only if the end justifies the means) and **Hobbes** (even without God, an **absolute** sovereign is justified as the provider of **order**). Hobbes's contract guarantees the government **unlimited** power.

- **The new question (deck):** should we **fear each other** (Hobbes's state of nature) **or fear the state?** The Enlightenment answer is **moderation** — a balance between the state of nature (unlimited freedom) and *civil society* (government power).
- **The decisive move — redefine the social contract:** *the monarch must be part of the agreement* (so the ruler is bound too), and **can the state give up some sovereignty?** This is exactly where Locke, Montesquieu and Rousseau go beyond Hobbes.

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## Locke — Waldron, 'Locke' (*Political Thinkers*, ch. 11)

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**Book:** Jeremy Waldron, 'Locke', in D. Boucher & P. Kelly (eds), *Political Thinkers* (2003), **ch. 11, pp. 181–97**. Main texts: Locke's *Two Treatises of Government* (1689) and *A Letter Concerning Toleration* (1689).

### Chapter résumé

Waldron reads Locke as "**the earliest well-worked-out liberal political theory**" — and still one of the most influential. Against **political absolutism** (Hobbes; and Filmer's patriarchy), Locke grounds government in **natural equality, natural law, and consent**: the state exists to **protect natural rights**

(life, liberty, property)), holds its power **in trust**, and may be **resisted** if it betrays that trust. Waldron's own thesis: Locke's value is **normative and theoretical**, not merely historical — he built the framework modern liberals still argue within (rule of law, toleration, government by consent, individual rights).

★ **The heart of the chapter:** because humans are **naturally free and equal** under a rational natural law, **no one may be placed under political authority except by their own consent**. Government is a **trust** to remedy the "inconveniences" of the state of nature (where each is judge in their own case) and to **protect natural rights**; if it turns absolute, arbitrary, or breaks the trust, the people may **resist and replace** it. Rights are **inalienable** — you cannot even consent to your own enslavement.

**The red thread.** Everything flows from **natural equality** → no natural rulers → authority only by **consent** → government as a limited **trust** → **resistance** when the trust is broken. For each step ask: *how does the premise of equality constrain what a ruler may do?*

## Key concepts / "modes" to use (from Waldron's "Key ideas" box)

| Concept                                     | Meaning                                                                                                                                                                                          |
|---------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Equality</b>                             | Everyone in the <u>state of nature</u> is born equal — no natural superior (Locke even rejects the "natural" subordination of women in the <i>First Treatise</i> ).                              |
| <b>Executive power of the law of nature</b> | In the <u>state of nature</u> <b>everyone</b> has the right to enforce natural law (punish offenders) — no one has authority over another.                                                       |
| <b>Express vs tacit consent</b>             | Authority requires <b>consent</b> — either explicit (an oath) or <b>tacit</b> (merely enjoying a country's protection/using its highways).                                                       |
| <b>Liberty vs licence</b>                   | <b>Liberty</b> = acting within natural law; <b>licence</b> = driven by passion, harmful to social life.                                                                                          |
| <b>Mixing one's labour</b>                  | The origin of <b>property</b> : labouring on something appropriates it (picking an apple).                                                                                                       |
| <b>Political vs patriarchal power</b>       | Undermines <b>Filmer's</b> derivation of political power from God's grant of fatherly authority to Adam.                                                                                         |
| <b>Right to revolution</b>                  | If governments act outside their constitutional constraints, there is a right of resistance — the " <u>appeal to heaven</u> ."                                                                   |
| <b>The social contract</b>                  | A <b>two-stage</b> move: (1) individuals form <b>political society</b> ; (2) society entrusts a <b>government</b> . If the government falls, <b>society remains</b> and can institute a new one. |

## Section-by-section main points

### Introduction — Locke as a liberal theorist

**Core:** Locke's writings are the **definitive starting point of modern liberal constitutionalism** — natural rights, limited government, toleration, executive accountability, the rule of law, and private property. Waldron insists the interest is **normative** ("what's true/right"), not just historical.

- We today still accept **equality** and **some version of natural rights** but are unsure of their **grounds** — so Locke's *arguments* (not just his conclusions) repay study.

## Locke's use of the social contract idea

**Core:** the *Two Treatises* target **political absolutism** — "power unconstrained by law." The **First Treatise** demolishes **Filmer** (no God-given patriarchal monarchy descending from Adam; man and woman were both made in God's image); the **Second Treatise** builds the positive theory.

- **Why government exists:** to remedy the "**inconveniences of the State of Nature**" where "every Man is Judge in his own case" — insecurity, private aggression, no impartial umpire. (*In plain terms: without a common judge, disputes have no fair settlement.*)
- **The anti-absolutist punch:** being subject to **one** absolute man is *worse* than the **state of nature** — "he being in a much worse condition, who is exposed to the arbitrary power of **one** man, who has the command of 100,000, than he that is exposed to the arbitrary power of 100,000 single men."
- **Hypothetical vs literal contract.** Locke uses **both**: (a) *hypothetical* — "no rational person **would** consent to absolutism" (this does the normative work, condemning arbitrary rule); (b) *literal/historical* — he thinks the contract also **actually** best explains how government arose (governments grew from families, but by **implicit agreement/trust**, not natural patriarchal right).
- **"Born free" (the key premise).** Every human is **born free**, bound only by natural law, not by any contract made by parents/ancestors. Political obligation is therefore **self-incurred** — by **consent** (express or *tacit*, e.g. enjoying a country's protection, using the highways, lodging at an inn).
- **What consent does — and doesn't do.** Consent brings you **within "the people"** — a community entitled to **scrutinise laws, hold lawmakers accountable**, and *in extremis* **raise a revolution** against a corrupt/unjust/incompetent ruler (with consent your resistance is legitimate *civic grievance*, not mere banditry). But consent **does not make an unjust law just** — because many Lockean rights are **inalienable**, "an imputation of consent cannot excuse their violation."

## Foundations — equality and natural law

**Core:** the **starting point** is **natural equality** — no one has an "evident mark of natural superiority," so no one may rule another **without consent**. The deeper ground is a **capacity we all share: reason**.

- **Why equality is grounded in reason, not species-membership:** a bare "same-species" account fails (why would human equality matter more than rabbits?). What matters is the "**power of abstracting**" — the capacity to **reason on general ideas** — which, for Locke, gives humans a **special moral relation to God**: we are God's "**workmanship**," "sent into the world about his business," his property.
- **Natural law is rationalistic** — "the law of reason." Reason teaches **duties: preserve yourself**, and (not in competition with that) **preserve the rest of mankind** — negative duties (don't harm) *and* positive duties (help preserve others, e.g. don't let them starve if you can help).
- **Rights are inalienable** because self-preservation is also a **duty owed to God** (stewardship): "no one may give up his right to preserve his own life or subject himself to the arbitrary power of another." → *No government may be founded on consent to one's own enslavement.*

## Property, economy, and disagreement

**Core:** property rights arise **before** government, by **labour** — and government must **respect** (not confiscate) them, though the *right to subsistence* trumps property in extremis.

- **Labour-mixing:** appropriating from the common by "**mixing one's labour**" (at time *t*, person *X* labours on land *L* → *X* owns *L*); this can be transferred by gift/sale → a whole natural economy of property, **independent of positive law**.
- **The three provisos (limits):** (1) the amount must relate to the **labour** performed; (2) **no waste**; (3) "**enough, and as good, left in common for others**."
- **The state may regulate but not confiscate/redistribute** property, unless needed to keep the natural-law constraints. But note the **charity/subsistence trump**: desperate poverty has a "**foundational, trumping right**" — "charity gives every man a title to so much out of another's plenty, as will keep him from extreme want."
- **The colonist worry (be fair to the critique):** Locke's labour theory **took the side of the encloser/colonist** — treating aboriginal America and English commons as available to be **appropriated** because they weren't farmed "intensively." Waldron: this is Locke taking a **contestable side** on a real question, not a knock-down refutation.
- **Disagreement is unavoidable:** people will hold **rival theories of property in good faith** → so a Lockean polity must **expect disagreement** about what natural law requires (this sets up the rule-of-law problem).

## Limited government, toleration, the rule of law — and revolution

**Core:** the supreme power **cannot be absolute** — it must respect natural law and rights (esp. property: it "cannot take from any man any part of his property without his own consent"). Rulers must be **under the law**, and where an institutional umpire fails, the people "**appeal to heaven**."

- **The rule of law:** natural law is **unwritten** (only "in the minds of men"), so society needs "**settled, standing laws**" and an impartial judge; and crucially **the rulers must be subject to the laws too** — otherwise society is like a farmyard where the farmer keeps the animals from harming each other but preys on them himself.
- **The Hobbes contrast (Waldron's honest caveat):** Locke's rule of law is *taken as* an answer to Hobbes — but "**it is not an answer at all**" to the *institutional* dilemma. If ruler and people disagree over whether the law was broken, there is "**no judge on earth**" → it can only be settled by **fighting** ("an **appeal to heaven**"). The **real** difference: Locke thinks a society is **better off** treating the *practice of accusing/resisting a lawbreaking ruler* as **legitimate** (it has a restraining effect), whereas **Hobbes** thinks that very opinion **dissolves** the commonwealth.
- **Revolution as the lesser evil:** in **extreme** cases, resistance/revolution — with all its disruption — is "**best for mankind**": better that "rulers should sometimes be liable to be opposed, when they grow exorbitant in the use of their power" than that the people be "always exposed to the boundless will of tyranny." (And in practice, people's **natural caution** means it leads to fighting far **less** often than one might fear.)
- **Toleration** (*A Letter Concerning Toleration*): the state has **no business** in religious belief — (a) belief **can't be coerced** (force can't produce inner conviction); (b) no one would trust a magistrate with their **soul**; (c) people aren't harmed by others' beliefs. **Two big exceptions:** **atheists** cannot be

tolerated (no foundation for oaths/promises; and Locke's natural law is religiously grounded) and **Catholics** (allegiance to a foreign power, Rome). Religious *practice* can still be regulated for **secular** reasons (e.g. banning animal slaughter on public-health grounds).

## Conclusion — Locke's legacy

**Core:** the enduring Locke = **rule of law, toleration, government by consent, moderate markets/property**. But note two limits Waldron flags:

- Locke **gestured at the separation of powers** but **did not develop** it — Montesquieu and *The Federalist* did.
- Locke was **democratic in spirit but not committed to democracy** as a principle — his views on the **franchise** are contested; his one firm position was a **part-time representative assembly** as the supreme legislature. His real legacy is a **foundation for thinking** about right, equality, and power.

## Cases & examples

- **Filmer's patriarchalism.** Sir Robert Filmer derived royal absolutism from God's grant of fatherly authority to **Adam**. Locke's *First Treatise* dismantles it (Scripture doesn't make Adam's heirs world-rulers; man & woman equally God's image). → *Illustrates: cutting political power loose from patriarchal/divine-right foundations.*
- **Aboriginal America (labour & property).** Locke argues even the **landless** prosper more in a private-property economy — "a king of a large and fruitful territory [in America]... feeds, lodges, and is clad worse than a day-labourer in England." → *Illustrates: the labour theory of property — and its pro-colonist edge (land not farmed "intensively" is treated as available).*
- **The "appeal to heaven."** When no earthly judge can settle whether a ruler broke the law, the people's last resort. → *Illustrates: the **limit** of Locke's rule of law and the ground of the **right to revolution**.*

## Key terms

| Term                         | Meaning                                                                                                                 |
|------------------------------|-------------------------------------------------------------------------------------------------------------------------|
| State of nature              | Pre-political condition of freedom & equality under natural law — but with "inconveniences" (each is judge in own case) |
| Natural law / natural rights | Rational law of "reason"; rights to life, liberty, property — <b>inalienable</b>                                        |
| Consent (express/tacit)      | The <b>only</b> legitimate source of political authority                                                                |
| Trust                        | Government holds power <b>in trust</b> to protect rights; break it → forfeiture                                         |
| Labour theory of property    | Property arises by "mixing one's labour," subject to three provisos                                                     |
| Appeal to heaven             | Resistance/"revolution" when no earthly judge can decide                                                                |
| Toleration                   | State out of religious belief — except atheists & (foreign-loyal) Catholics                                             |

## Exam pointers

- Reconstruct the chain: equality → no natural ruler → **consent** → government as **trust** → **right of revolution**; and explain **hypothetical vs literal** contract.
- Ground Lockean equality in reason (the "power of abstracting," workmanship of God) and explain why rights are **inalienable** (no self-enslavement).
- State the labour theory of property + its **three provisos** + the **subsistence trump** — and the colonist critique.
- Explain Locke vs **Hobbes** on the rule of law: why Waldron says Locke's answer "**is not an answer at all**" institutionally, and the revolution-as-lesser-evil point.

Bridge. Locke **constrains** power by **consent** + **trust** + a **right to resist** — but leaves the *institutional* umpire problem unsolved (appeal to heaven). **Montesquieu** answers exactly that gap: don't rely on one contract — **engineer** the constitution so power checks power.

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## Montesquieu — McClelland, *Enlightenment and Government Through Law* (ch. 16)

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Book: J.S. McClelland, *A History of Western Political Thought* (1996), **ch. 16**, pp. 315–338. Main text: Montesquieu, *De l'Esprit des Lois* / The Spirit of the Laws (1748).

### Chapter résumé

Montesquieu (1689–1755), a Bordeaux **noblesse de la robe** magistrate, turns the Enlightenment's **scientific** ambition on politics: laws are "**the necessary relations deriving from the nature of things**," and a society's whole culture — its esprit général — is shaped by **physical causes** (climate, geography) and **moral causes** (religion, custom, government). The Spirit of the Laws (1748) is famous for **two doctrines**: the **influence of climate** and the separation of powers. Montesquieu classifies governments by **nature** + **principle** (republic/virtue, monarchy/honour, despotism/fear), prizes **moderation**, and — studying **England** and **Rome** — argues that **liberty** ("tranquillity without fear") is secured by **balancing and separating powers**, not by one social contract.

★ **The heart of the chapter**: laws are not arbitrary — they fit a society's **esprit général** (the mix of climate, geography, religion, custom, history). Governments have a **nature** (their structure) and a **principle** (the passion that drives them: **virtue** in a republic, **honour** in a monarchy, **fear** in a despotism). Since power corrupts, **liberty is secured institutionally** — by **separating the legislative, executive and judicial powers** and **balancing** the social estates, so that "power checks power." Liberty = **security of person and property; tranquillity without fear**.

**The red thread**. Montesquieu is a **sociologist of law** before the word existed: *why do different peoples have different laws, and what institutional arrangement secures liberty?* Answer: laws must fit the esprit général, and liberty needs **moderation** + **separated/balanced powers**.

## Key concepts / "modes" to use

- Spirit of the laws / *esprit général* — laws as "relations deriving from the nature of things"; a society's culture = **physical causes** (climate, soil) × **moral causes** (religion, custom, government).
- The theory of climate — "climate is the first of all empires"; temperature shapes bodies, passions, and hence manners and government (must sometimes be **legislated against**).
- **Three types + their principles** — republic → virtue · monarchy → honour · despotism → fear (and their *natures* and *ends/objects*).
- **Moderation** — all non-despotic governments are "moderate" (rule **by law**); the wise legislator returns a government to its **first principle**.
- Pouvoirs intermédiaires (intermediate/mediating powers) — nobility, chartered towns, the Church, the **parlements** — buffers between king and subject that soften monarchy.
- Separation of powers — legislative / executive / judicial, in **different hands**; the answer to the "corrupt sovereign."
- Mixed government — a balance of monarchic + aristocratic + democratic elements (Rome; England: king/lords/commons).

## Section-by-section main points

### | The Spirit of the Laws — laws fit the *esprit général*

**Core:** the Enlightenment wants **scientific** understanding — bring many phenomena under a few laws. Montesquieu applies this to society: human **positive law** can change (unlike physical/moral law), and good law must fit the society's *esprit général*.

- **Definition:** laws in general are "**the necessary relations deriving from the nature of things**" — "all beings have their laws" (divinity, matter, beasts, man).
- The *esprit général* = the interaction of causes forming a society's whole (moral/social/political) culture: **physical causes** dominate early (climate, soil/landscape), then **moral causes** grow (religion, laws, government, custom, manners). It is the **legislator's "raw material"** — legislate **against** it and your laws will "fail to work" or destroy the society. (So Montesquieu is no fatalist: a wise legislator has "*plenty of room for reform*" within the *esprit général*, and sometimes must legislate against it.)
- **Not a pure relativist:** Montesquieu still holds **pre-social laws of nature** (peace, self-preservation, sexual attraction, life in society, reasonableness, equality, freedom by birth...) derived from **how humans actually live** — and thinks **nature prompts men to virtue** (the anti-Hobbesian Troglodytes parable: a society run on pure self-interest **disintegrates**).

### | The theory of climate

**Core:** "climate is the first of all empires" — a **materialist** doctrine: temperature acts on the body's "fibres" and nerves, shaping passions, manners, and hence forms of government.

- **North (cold):** contracting/expanding fibres → vigorous blood → **courage, confidence, frankness**; hearty pleasures; **fewer vices**.
- **South/East (heat):** relaxed fibres, exposed nerves → **sluggishness, indolence**, but **imagination/sensitivity**; taste for "exotic and wicked pleasures," **monasticism**, despotism. (*Ergo the*

East's political immobility.)

- **The legislator's job:** at the **extremes**, climate must be **legislated against** (religion + manners + law together) — but where **all laws point the same way** (China), change is very hard. (*Caveat: this is stereotype-laden 18th-c. "science"; McClelland presents it as Montesquieu's, not as fact.*)

## Types of government and their principles

**Core:** Montesquieu classifies three types by their **nature** (structure), **principle** (the driving "spring"), and **object** (end). The **principle** is the real insight — the passion **without which** each government **cannot survive**.

| Type                                          | Nature (structure)                                    | Principle (its "spring")                                                                      | Notes                                                                                                                                                 |
|-----------------------------------------------|-------------------------------------------------------|-----------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Republic</b><br>(democracy or aristocracy) | the people (or part) are sovereign                    | <b>Virtue</b> — love of country, self-sacrificing passion for <b>equality &amp; frugality</b> | Needs to be <b>small</b> ("face-to-face"); Sparta/Athens/ <b>Rome</b> at their best; a "thing of the past" for large modern states                    |
| <b>Monarchy</b>                               | one person ruling by <b>fixed/constitutional laws</b> | <b>Honour</b> — ambition/rank (roots in the medieval knightly code)                           | <b>Moderate</b> ; tends to <b>degenerate into despotism</b> unless a real <b>constitutional law</b> and <b>pouvoirs intermédiaires</b> check the king |
| <b>Despotism</b>                              | one man ruling <b>without law</b> , by caprice        | <b>Fear</b>                                                                                   | The form he <b>most dislikes</b> : unstable, "silence of the subjugated," corrupt; "despotism begins with sleep"                                      |

- These principles are **negative definitions**: *without* virtue a republic can't survive; *without* honour/fear a monarchy/despotism can't. And the legislator's crucial task is to **return a decayed government to its first principle** (from Machiavelli's *Discourses*).
- **All non-despotic government is "moderate"** — i.e. **government according to law** (close to Aristotle). Despotism alone is lawless.
- **Rome as the great case**: its **class war** (patricians vs plebs) kept a **balance** (tribunes checking consuls/senate) → moderate, free, long-lived. Its **fall**: success as a **conquering power** → too big → virtue declined → private opulence → factions → civil war → emperors/tyranny. (*He distinguishes historical "causes" — long-term, systemic, irreversible — from "occasions" — accidental triggers like a particular Caesar.*)

## Monarchy, the *noblesse* and the *pouvoirs intermédiaires*

**Core:** monarchy is **moderate** but corruptible; what keeps it from despotism are **intermediate powers** that make royal power flow "through the proper channels."

- The **noblesse de la robe** (the legal aristocracy — Montesquieu himself) are the **"natural guardians"** of the constitution: they **mediate** between the king's will and the subjects.
- **Pouvoirs intermédiaires** = nobility, chartered/incorporated towns, Church privileges, and above all the **parlements** (provincial law-courts exercising a kind of **judicial review** of royal edicts). *This is why*

he defends "feudal" privileges — given monarchy's corruptibility, only an independent legal channel can "moderate autocratic pretension" and secure the feeling of *liberty*.

## ★ The separation of powers — the case of England

**Core:** *liberty* = the feeling of **security within the law** ("tranquillity without fear"), and it is secured where **not all the powers of government are in the same hands**. England is the model.

- **The doctrine:** the legislative, executive, and judicial powers should be **balanced, independent, and in different hands**; the closer they connect, the higher the risk of **despotism** — "power checks power." (*This is the answer to Hobbes's and Locke's problem of the corrupt sovereign: don't trust a person — divide the office.*)
- **England (studied 1729–31):** its animating spirit and **end** is **liberty** (unlike Rome, whose end was virtue). Liberty is preserved by the **independence of the judiciary** (carried furthest in England: **trial by jury** — ad hoc juries decide guilt, judges sentence; judges serve "during good behaviour," not the king's pleasure; the Lords as supreme tribunal), and the division between **Parliament (legislative)** and **king (executive)**.
- **The honest caveat (McClelland):** Montesquieu is **accused of naïveté** — in Hanoverian England the powers were **not** really separate (the king shared the legislative via **veto** and **patronage**; ministers sat in Parliament). Montesquieu chose to see England through the eyes of the **anti-Walpole opposition**.
- **What really preserved English liberty (McClelland's reading):** not *pure* separation, but **mixed government** (king/lords/commons sharing sovereignty) kept honest by an outside corrective — the "**King Mob**," a half-tolerated "Fourth Estate" whose **riots** (like the Roman plebs) keep the aristocratic/monarchic parts from over-reaching. (*Montesquieu's admiration for republican Rome rested on the same idea: the "turbulence of the people" as a self-correcting brake.*)
- **Two Montesquieus (the payoff):** the **separation-of-powers** Montesquieu wants to make government **difficult** (check power); the **mixed-government** Montesquieu wants to make it **easy** (balanced cooperation). The **American founding** debate — **Jeffersonian** (minimal) vs **Hamiltonian** (strong central) government — is a debate *between the two Montesquieus*. Republics can be large if **federated** (the Greek leagues; *The Federalist Papers* — "the USA is Homer's revenge").

## Cases & examples

- **The Troglodytes (*Persian Letters*).** A people throw out their king and live by pure self-interest (a Hobbesian state of nature) → society **disintegrates**; only two families survive by living **virtuously**, and prosper. → *Illustrates: Montesquieu's anti-Hobbes — some virtue is natural and necessary for any society to function.*
- **Rome — rise and fall.** Class war (patricians/plebs) produced **balance** and longevity; **conquest** and **opulence** killed **virtue** → factions → civil war → despotism. → *Illustrates: the principle doctrine (virtue sustains a republic) and causes vs occasions.*
- **England.** Separation of powers + independent judiciary + trial by jury + the "King Mob" corrective. → *Illustrates: liberty secured institutionally — the model for modern constitutionalism.*
- **The French parlements.** Provincial courts exercising judicial review of royal edicts (Montesquieu was a *président à mortier*). → *Illustrates: pouvoirs intermédiaires — an independent legal channel that moderates monarchy.*

## Key terms

| Term                        | Meaning                                                                                                        |
|-----------------------------|----------------------------------------------------------------------------------------------------------------|
| <i>Esprit général</i>       | A society's whole culture, formed by physical (climate/soil) × moral (religion/custom/government) causes       |
| Spirit of the laws          | Laws as "the necessary relations deriving from the nature of things" — they must fit the <i>esprit général</i> |
| Theory of climate           | Temperature shapes bodies/passions → manners & government; must sometimes be legislated against                |
| Nature / principle / object | A government's structure / driving passion (virtue·honour·fear) / end                                          |
| Moderation                  | Government <b>by law</b> (all non-despotic forms); return to "first principle"                                 |
| Pouvoirs intermédiaires     | Intermediate powers (nobility, towns, Church, <i>parlements</i> ) buffering monarchy                           |
| Separation of powers        | Legislative/executive/judicial in different hands → liberty ("power checks power")                             |
| Mixed government            | Balance of monarchic + aristocratic + democratic elements (king/lords/commons)                                 |

## Exam pointers

- Explain the *esprit général* and the climate theory — laws must fit a society's nature (and its limits/critique).
- Reproduce the three types + principles table (republic/virtue, monarchy/honour, despotism/fear) and the "return to first principle" idea.
- State the separation of powers precisely (three powers, different hands, "power checks power") and use England — including the *naïveté* caveat and the **mixed-government** / "King Mob" reading.
- Contrast Montesquieu **with Locke and Hobbes**: he secures liberty by **institutional design**, not by one social contract; "**tranquillity without fear**."

**Bridge.** Montesquieu answers Locke's unsolved umpire problem with **institutions** (separated, balanced powers). **Rousseau** pushes the *other* way — not on institutions but on **legitimacy**: what would make obedience *fully* compatible with freedom? His answer, the **general will**, reframes who "the people" are — which **Wollstonecraft** then asks *includes whom?*

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## Wollstonecraft — *A Vindication of the Rights of Woman* (Dedication + Introduction)

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**Text:** Mary Wollstonecraft, *A Vindication of the Rights of Woman* (1792) — the **Dedication** "To M. Talleyrand-Périgord, Late Bishop of Autun" and the **Introduction** (the only assigned sections).

## Reading résumé

Wollstonecraft (1759–1797) turns the Enlightenment's **own premise against it**: if **rights and dignity follow from Reason**, and women possess reason, then **women must share those rights** — above all the right to a real **education**. A supporter of the French Revolution disillusioned by its **denial of rights to women**, she argues (in the **Dedication**) that the new French constitution is **incoherent** if it excludes half the human race, and (in the **Introduction**) that a **false, ornamental education** — designed by men to make women "**alluring mistresses**" rather than "**rational wives**" — has deliberately kept women weak. Gender hierarchy is **socially constructed, not natural**.

★ **The heart of the reading**: the Enlightenment says **rights and virtue flow from reason** — so "by a **parity of reasoning**" the rights of woman "will not shrink from the same test" as the rights of man. Women are made weak and vain not by **nature** but by a **miseducation** that trains them to please men instead of developing their minds. Give women **education** and rights, and they become **rational wives, mothers, and citizens**; deny them, and you "render both men and themselves vicious." "**The first object of laudable ambition is to obtain a character as a human being, regardless of the distinction of sex.**"

**The red thread.** Two moves: (1) *consistency* — the rights of man **logically entail** the rights of woman (Dedication); (2) *diagnosis* — women's apparent inferiority is the **product of miseducation**, not nature, and the cure is **reason/education** (Introduction).

## Section-by-section main points

### **The Dedication — "To M. Talleyrand-Périgord": rights of man ⇒ rights of woman**

**Core:** Wollstonecraft addresses the French legislator (author of a report on national education that excluded girls) and argues that the **principles of the new constitution demand the inclusion of women** — not as special pleading but as **logical necessity**.

- **The consistency challenge**: if the abstract **rights of man** withstand scrutiny, then "those of woman, by a parity of reasoning, will not shrink from the same test." She throws Talleyrand's own words back: excluding half the race from government is a "**political phenomenon** that... it is impossible to explain" — so "**on what does your constitution rest?**"
- **Reason is not sex-specific**: "*Who made man the exclusive judge, if woman partake with him the gift of reason?*" Legislators who "crush reason" while claiming to "usurp its throne only to be useful" are acting "**like tyrants.**"
- **The civic stakes — education & motherhood**: a woman's **moral development** needs an education grounded in **reason**, not sentiment; and "**if children are to be educated to understand the true principle of patriotism, their mother must be a patriot.**" (*Women's rights aren't only for women — a republic needs rational mothers to raise citizens.*)
- **The corruption argument**: treat women as objects of desire rather than rational agents, and you corrupt **both sexes** — "**if women are not permitted to enjoy legitimate rights, they will render both men and themselves vicious, to obtain illicit privileges.**"

## | The Introduction — false education makes women weak

**Core:** the misery and weakness of women trace to a "neglected/false education" designed for male pleasure, which sacrifices women's strength and usefulness to beauty.

- **The botanical metaphor:** like flowers "planted in too rich a soil," women have had "strength and usefulness sacrificed to beauty" — grown showy but useless.
- **The root cause — books "written by men":** authors who, "considering females rather as women than human creatures, have been more anxious to make them alluring mistresses than rational wives." So women are trained to "inspire love, when they ought to cherish a nobler ambition."
- **Against the "Mahometanism" of treating women as sub-human:** women are treated as if they were not "a part of the human species, when improvable reason is allowed to be the dignified distinction which raises men above the brute creation."
- **The attack on Rousseau (crucial link):** she admires Rousseau's genius, but "indignation always takes place of admiration" at his prescriptions for female education — his Sophie (in *Émile*) is designed to please men and be kept dependent and governed by fear. Rousseau and his followers have "contributed to render women more artificial, weaker characters... and, consequently, more useless members of society." (*This is the direct quarrel the deck flags: Wollstonecraft vs Rousseau on women's education.*)
- **Physical vs moral inferiority:** she concedes men's greater physical strength ("in the government of the physical world... the female... is inferior to the male") — but this gives no warrant for keeping women intellectually stunted. Nature provides physical differences; it does not provide social hierarchies.
- **Dignity through reason, not "accomplishments":** she dismisses "soft phrases, susceptibility of heart, delicacy of sentiment" and "fascinating graces" as weakness dressed up as virtue. The aim: "to obtain a character as a human being, regardless of the distinction of sex." Ornamental education (a "smattering of accomplishments") makes women dependent, cunning, and prone to a "propensity to tyrannize."
- **Method & audience:** she deliberately rejects "flowery diction" — "I aim at being useful, and sincerity will render me unaffected"; she wishes "to persuade by the force of my arguments, [rather] than dazzle by the elegance of my language." She addresses mainly the middle class, as "in the most natural state" (uncorrupted by wealth or crushed by poverty).

## Cases & examples

- **Rousseau's Sophie (*Émile*).** Rousseau designs the ideal woman to be charming, dependent, and educated only to please her husband. Wollstonecraft makes this her prime target. → *Illustrates: the miseducation thesis — even a great Enlightenment mind reasons women into weakness; the Wollstonecraft-vs-Rousseau clash.*
- **Talleyrand's education report.** His plan for French national education excluded girls from the rights the Revolution proclaimed. → *Illustrates: the consistency argument — the rights of man are incoherent if they exclude women.*

## Key terms

| Term                                      | Meaning                                                                                             |
|-------------------------------------------|-----------------------------------------------------------------------------------------------------|
| Parity of reasoning                       | Rights of man $\Rightarrow$ rights of woman — the same test applies to both                         |
| Reason                                    | The Enlightenment ground of rights/dignity — <b>not</b> sex-specific                                |
| Education                                 | Wollstonecraft's key lever: rational education makes women rational wives/mothers/citizens          |
| "Alluring mistresses" vs "rational wives" | The false (male-designed) vs true aim of women's formation                                          |
| Socially constructed hierarchy            | Gender hierarchy is made by society/education, not by nature (which gives only physical difference) |

## Exam pointers

- State the consistency argument ("by a parity of reasoning") — how she uses the **rights of man** to demand the **rights of woman**.
- Explain the miseducation thesis: women made weak by an education for **male pleasure**; the cure is **reason/education**; hierarchy is **constructed, not natural**.
- Use the Rousseau/Sophie clash as the worked example — and connect to the deck's question "did 'the people' include women?"
- Give her civic point: rational **mothers** are needed for a free republic (education is a **public**, not merely private, matter).

**Bridge.** Wollstonecraft completes the module's arc: Locke/Montesquieu/Rousseau **constrain and re-ground** power, but still leave "**the people**" implicitly male. She turns the Enlightenment's **own standard** — **reason** — into a demand for **inclusion**: the rights of man are empty until they are also the rights of woman.

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## Rousseau — McClelland, *Social Contract III* (ch. 13) (optional)

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**Book:** J.S. McClelland, *A History of Western Political Thought* (1996), **ch. 13, pp. 250–274**. Main text: Rousseau, *Du contrat social / The Social Contract* (1762). (Marked **optional** by the lecturer — lighter treatment; the essentials for the module's "who are the people?" thread.)

## Résumé & key ideas

Rousseau (1712–1778) accepts the social-contract form but pushes it to a **radical** conclusion: a legitimate contract must let each person "**obey himself alone and remain as free as before**." His device is the **general will** (*volonté générale*) — and his slogan, "*Man is born free, and everywhere he is in chains*," is both a political and a **moral** indictment of existing society.

★ **The heart:** ordinary society divides us against ourselves (self-interest vs conscience) and makes us **unfree and unequal**. The way out is a contract in which each person surrenders everything to the whole and receives citizenship back: "**Each of us puts his person and all his power in common under the supreme direction of the general will.**" Obeying the **general will** is obeying your own **real will** as a citizen — so you are **free while being ruled**. The people are **sovereign**; but who they are, and who speaks for them, is the problem the next century (and Wollstonecraft) presses.

- "Man is born free..." — a **moral** statement: those who do "best" in a corrupt society are its **greatest slaves** ("one thinks himself the master of others, and still remains a greater slave than they"). Freedom = distance *back* toward natural innocence.
- **Two states of nature (contra Hobbes):** natural inequality is **harmless**; it's **society** (force and fraud) that turns it into the **inequality of rich and poor** that "really matters." So Rousseau is **anti-Hobbesian** and **anti-Lockean**: he won't accept liberty as a "more-or-less" trade of freedom for security. For him liberty is "**either-or**" — either wholly free or not free at all.
- **The general will (*volonté générale*):** when a sovereign people assembles **as equals**, each consults the **same** shared interest, so its decisions are **unpredictable and therefore free** (a choice fixed by private self-interest isn't free). The **Sovereign** (the active people) "merely by virtue of what it is, is always what it should be" — acts of the general will **can't be wrong** (≠ merely what a majority happens to want).
- **The Legislator:** a people used to being ruled by self-interest may need a "**perfect outsider**" — the **Legislator** — to help them see what they **really** will and to give them a system of **civic values** (including a civil religion).
- "Forced to be free" (**his most famous paradox**): a dissenting minority **coerced** to follow the general will is being "forced to be free" — coerced back to their **own real will**. This rests on **positive liberty** (freedom as **self-fulfilment** / **self-mastery**, my "better self" ruling my "worse self"), as opposed to the **negative liberty** ("freedom from") that **liberals** insist on. (*McClelland: this is the seed of the whole modern totalitarianism debate — Rousseau was even blamed for the French Revolution by Burke.*)
- **Citizen vs subject:** we are **citizens** (active) when we help **make** law, **subjects** (passive) when we **obey** it — obeying laws we ourselves authored.

## Why it matters for the module (the link to Wollstonecraft)

Rousseau makes **the people sovereign** and freedom **collective** — but leaves wide open **who "the people" are** and **who expresses their will** (the deck's pointed question: *did "the people" include women?*). His own answer excluded women (his **Sophie** is educated only to please men) — which is **exactly** what **Wollstonecraft** attacks. So even in an "optional" role, Rousseau is the **hinge** to the module's climax: the Enlightenment enlarges *and* exposes the boundaries of "the people."

## Key terms

| Term                                     | Meaning                                                                                             |
|------------------------------------------|-----------------------------------------------------------------------------------------------------|
| General will ( <i>volonté générale</i> ) | The shared will of the people as sovereign — obeying it = obeying your real (citizen) self          |
| "Man is born free..."                    | Moral + political indictment: society, not nature, enslaves; the "master" is the greater slave      |
| Legislator                               | The wise outsider who helps a people see what it really wills + founds its civic values             |
| Forced to be free                        | Coercing a dissenter to the general will = returning them to their own real will (positive liberty) |
| Positive vs negative liberty             | Self-mastery/self-fulfilment vs "freedom from" interference (liberals insist on the latter)         |
| Citizen vs subject                       | Active (law-making) vs passive (law-obeying) — the same persons in two capacities                   |

## Exam pointers (*optional topic*)

- Explain the general will and why Rousseau says the Sovereign "is always what it should be."
- Unpack "forced to be free" via positive vs negative liberty — and why **liberals** reject it.
- Use Rousseau as the bridge to "who are the people?" and the **Rousseau–Wollstonecraft** clash on women.

(Anchor: *general will* — see the résumé above.)

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## ★ Synthesis — how the four answer the module's two questions

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**Core:** the deck's spine is two questions — *how is power constrained?* and *who are "the people"?* Here is the whole module on one page.

| Thinker                | Human nature                                     | What secures liberty / good rule                                                    | Who are "the people"?                                                                        |
|------------------------|--------------------------------------------------|-------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------|
| <b>Locke</b>           | social, rational; "born free & equal"            | <b>consent + trust + rule of law + right of revolution</b> ; protect natural rights | property-holding men (democratic <i>in spirit</i> , not committed to democracy)              |
| <b>Montesquieu</b>     | shaped by <i>esprit général</i> (climate/custom) | <b>separation &amp; balance of powers</b> ; moderation; "tranquillity without fear" | the estates (king/lords/commons) in balance — incl. a " <b>King Mob</b> " corrective         |
| <b>Rousseau</b> (opt.) | born free & good; corrupted by society           | the <b>general will</b> ; people both sovereign & subject; "forced to be free"      | the <b>assembled people</b> as sovereign — but <i>who counts?</i> left open (excludes women) |
| <b>Wollstonecraft</b>  | rational — <b>regardless of sex</b>              | extend <b>reason, rights &amp; education to women</b> ; hierarchy is constructed    | <b>"the people" must include women</b> — the rights of man ⇒ rights of woman                 |

The movement: from **constraining** power (Locke → Montesquieu) to **whose** reason and consent count (Rousseau's open question → Wollstonecraft's answer). All four share the Enlightenment premise — **reason, not birth or divine right, legitimates authority** — but they disagree on the institutions and on the boundaries of "the people."

## ★ Reading questions — worked answers (the deck's "For Consideration")

### 1 · What were the Enlightenment's basic messages about human nature?

**Answer:** humans are **rational** (reason is the mark that raises us above beasts and grounds our rights/dignity), **naturally free and equal**, and **improvable** (Locke's *tabula rasa* — we learn from experience). Against Hobbes's fearful egoist, the Enlighteners lean toward humans as **social** (Locke, Montesquieu's Troglodytes) and educable (Wollstonecraft). Reason is **not** the property of one sex or class.

### 2 · What kind of government did they prefer — and why?

**Answer:** **constrained, law-bound, moderate** government — *not* Hobbesian absolutism and (mostly) *not* democracy either.

- **Locke:** government by **consent**, holding power **in trust** to protect natural rights, with a **right of revolution** if it breaks trust; a **representative legislature** as supreme.
- **Montesquieu:** **constitutional monarchy** with **separated powers** and **balanced estates** (a republic being impossible for large modern states); liberty = "tranquillity without fear."
- **Rousseau (opt.):** a **republic** expressing the **general will**, with the people **sovereign** (radically democratic in principle, but demanding).

- **Wollstonecraft:** a rights-and-reason-based order that **includes women** — the form matters less than the **inclusive principle**. (*Common thread: legitimacy comes from **reason and consent**, and power must be **limited** — by law, by institutions, or by the people's will.*)

### 3 • Who were "the people" — inclusion and exclusion?

**Answer:** the Enlightenment **expanded** "the people" in principle (all rational beings) while **excluding** many in practice.

- **Locke:** effectively **property-holding men** (franchise views contested).
- **Montesquieu:** the **estates** in balance — not a democratic "people."
- **Rousseau:** the **assembled sovereign people** — but he leaves **who counts** unclear and **excludes women** (Sophie).
- **Wollstonecraft:** presses the contradiction — if rights follow from **reason**, "the people" **must include women**. → *This is the module's punchline: the Enlightenment's universal premise (reason) kept colliding with its narrow practice — and Wollstonecraft turned the premise against the exclusion.*

### 4 • Locke vs Montesquieu vs Rousseau — how do they constrain power differently?

**Answer:** **Locke** constrains power **externally** (consent + trust + the threat of **revolution**), but leaves the institutional umpire unsolved ("appeal to heaven"). **Montesquieu** constrains it **internally/institutionally** (**separate and balance** the powers so "power checks power"). **Rousseau** dissolves the problem differently — power is legitimate only as the **people's own general will**, so obeying it is obeying yourself. (*Locke = rights + resistance; Montesquieu = institutional design; Rousseau = popular sovereignty.*)

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## ★ Fun facts & memorable details

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Sticky bits from Module 4 (Locke • Montesquieu • Wollstonecraft • Rousseau).

#### Locke

- Locke published the *Two Treatises* **anonymously** (1689) — a "call for a revolution" so dangerous it "might easily have cost the author his life" had it appeared in the 1680s.
- His epistemology and politics **distrust intellectual pretension**: the *Treatises* warn that "the busy mind of man" can "carry him to a brutality below the level of the beasts."
- Waldron's zinger on Locke vs Hobbes on the rule of law: it is "**not an answer at all**" to the institutional problem — both end at "an appeal to heaven" (i.e. **fighting**).
- Locke **wouldn't tolerate atheists** — not out of bigotry alone but because his whole system of rights is **religiously grounded** (we are God's "workmanship").

#### Montesquieu

- A **beggar** was made one of Montesquieu's godparents so he'd remember all his life that "**the poor are our brothers.**"
- His scholar's motto: "**read much and note little.**"
- "**Climate is the first of all empires**" — he half-seriously blamed **hot weather** for despotism and **monasticism**, and joked you'd have "to flay a Muscovite alive to make him feel anything at all."
- "**Despotism begins with sleep.**" And he thought even a *benevolent* despot can't really rule a big empire — his governors become "**petty tyrants.**"
- The "**two Montesqueius**" (separation of powers vs mixed government) map onto the **Jefferson vs Hamilton** fight over the US Constitution.

### Wollstonecraft

- She wrote *A Vindication of the Rights of Men* (1790) **before** the one on **Woman** (1792) — part of the "**Revolution Controversy**" answering Edmund Burke.
- Her target in the Introduction is **Rousseau's Sophie** — she **admired** his genius but felt "**indignation**" at his idea that women should be educated only to **please men.**
- Her rallying line: "**the first object of laudable ambition is to obtain a character as a human being, regardless of the distinction of sex.**"
- Deliberately plain style: "**I aim at being useful, and sincerity will render me unaffected**" — she refused "flowery diction."

### Rousseau (*optional*)

- "**Man is born free, and everywhere he is in chains**" — nine words that "sum up the entire history of the human race."
- The man who wrote *Émile* (on education) deposited **all five of his own children** in the **Foundling Hospital.**
- **Burke blamed Rousseau (almost single-handedly) for the French Revolution** — Rousseau is "the first of the terrifying simplifiers."
- "**Forced to be free**" — the paradox at the root of the whole modern debate about **positive liberty** and **totalitarianism.**